ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO.:
NAME: Brendan Nqwa Nforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton STATE: CA ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442 FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff. In Pro Per

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Joaquin
STREET ADDRESS: 180 E Weber Ave. Suite 200
MAILING ADDRESS: 180 E Weber Ave. Suite 200
CITY AND ZIP CODE: Stockton. CA 95202
BRANCH NAME: Stockton Courthouse

PLAINTIFF/PETITIONER: Brendan Nqwa Nforbi
DEFENDANT/RESPONDENT: Diamond Truck Sales. Inc.: Alpine Truck Sales. Inc.

APPLICATION AND ORDER FOR APPEARANCE AND EXAMINATION
[x] **ENFORCEMENT OF JUDGMENT** [ ] **ATTACHMENT (Third Person)**
[x] **Judgment Debtor** *or* [ ] **Third Person**

CASE NUMBER:
STK-CV-UF-2026-0001094

Instructions to the judgment creditor for completing this form:
- Complete the application on page 2 to ask for an examination of a judgment debtor or third person.
- Do not use this form if you want to ask for an examination of the judgment debtor in a case where the judgment concerns consumer debt and was awarded on or after January 1, 2025. Use *Application and Order to Appear for Examination—Consumer Debt* (form EJ-141) instead. (Code Civ. Proc., § 708.111.)

ORDER TO APPEAR FOR EXAMINATION

1. TO *(name):* [TBD -- insert judgment debtor name(s) once Aug. 12 judgment enters]
2. YOU ARE ORDERED TO APPEAR personally before this court, or before a referee appointed by the court, to
   a. [x] give information to help enforce a money judgment against you.
   b. [ ] give information about property of the judgment debtor in your possession or control or a debt you owe the judgment debtor.
   c. [ ] give information about property of the defendant in your possession or control or a debt you owe the defendant.

Name and address of court if different from above:

Hearing Date g Date: Time:
Dept.: Room:

3. This order may be served by a sheriff, marshal, registered process server, **or** the following specially appointed person *(name)*: registered process server or San Joaquin County Sheriff

Date:

JUDGE

This order must be served no less than 30 days before the date set for the examination, or no less than 10 days before that date if the examination is of someone other than the judgment debtor.

IMPORTANT NOTICES ON PAGES 2, 3 AND 4

Form Adopted for Mandatory Use
Judicial Council of California
AT-138/EJ-125 [Rev. Oct. 1, 2024]

APPLICATION AND ORDER FOR APPEARANCE AND EXAMINATION (Attachment—Enforcement of Judgment)

Code of Civil Procedure, §§ 491.110, 708.110, 708.120, 708.150, 708.170
www.courts.ca.gov

PLAINTIFF/PETITIONER: Brendan Ngwa Nforbi DEFENDANT/RESPONDENT: Diamond Truck Sales, Inc.; Alpine Truck Sales, Inc.	CASE NUMBER: STK-CV-UF-2026-0001094

APPLICATION FOR ORDER TO APPEAR FOR EXAMINATION

4. [x] Original judgment creditor [ ] Assignee of record [ ] Plaintiff who has a right to attach order applies for an order requiring *(name):* [TBD -- same as Item 1, page 1] to appear in court and give information to help enforce a money judgment or to give information about property or debt.

5. The person to be examined is
   a. [x] the judgment debtor.
   b. [ ] a third person (1) who has possession or control of property belonging to the judgment debtor or the defendant or (2) who owes the judgment debtor or the defendant more than $250. An affidavit supporting this application under Code of Civil Procedure section 491.110 or 708.120 is attached.

6. [x] This application is not subject to Code of Civil Procedure section 708.111 because it does not seek an examination of a judgment debtor to enforce a judgment that concerns consumer debt and that was entered on or after January 1, 2025.

7. The person to be examined resides or has a place of business in this county or within 150 miles of the place of examination.

8. [ ] This court is **not** the court in which the money judgment is entered or *(attachment only)* the court that issued the writ of attachment. An affidavit supporting an application under Code of Civil Procedure section 491.150 or 708.160 is attached.

9. [ ] The judgment debtor has been examined within the past 120 days. An affidavit showing good cause for another examination is attached.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

Brendan Ngwa Nforbi
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF DECLARANT)

Information for Judgment Creditor Regarding Service

If you want to be able to ask the court to enforce the order on the judgment debtor or any third person, you must have a copy of the order personally served on the person to be examined by a sheriff, marshal, registered process server, or the person appointed in item 3 of the order, and have a proof of service filed with the court. You must have the order served at least 30 calendar days before the date of the examination if the examination is of the judgment debtor, or at least 10 calendar days before the date of the examination if the examination is of a third person.

If the examination is of a third person, you must also have a copy of the order served personally or by mail on the judgment debtor at least 10 calendar days before the date of the examination.

IMPORTANT NOTICES ABOUT THE ORDER

APPEARANCE OF JUDGMENT DEBTOR (ENFORCEMENT OF JUDGMENT)

NOTICE TO JUDGMENT DEBTOR If you fail to appear at the time and place specified in this order, you may be subject to arrest and punishment for contempt of court, and the court may make an order requiring you to pay the reasonable attorney fees incurred by the judgment creditor in this proceeding.

APPEARANCE OF A THIRD PERSON (ENFORCEMENT OF JUDGMENT)

NOTICE TO PERSON SERVED If you fail to appear at the time and place specified in this order, you may be subject to arrest and punishment for contempt of court, and the court may make an order requiring you to pay the reasonable attorney fees incurred by the judgment creditor in this proceeding.

NOTICE TO JUDGMENT DEBTOR The person in whose favor the judgment was entered in this action claims that the person to be examined under this order has possession or control of property that is yours or owes you a debt. This property or debt is as follows *(describe the property or debt)*:

If you claim that all or any portion of this property or debt is exempt from enforcement of the money judgment, you must file your exemption claim in writing with the court and have a copy personally served on the judgment creditor not later than three days before the date set for the examination. You must appear at the time and place set for the examination to establish your claim of exemption or your exemption may be waived.

APPEARANCE OF A THIRD PERSON (ATTACHMENT)

NOTICE TO PERSON SERVED If you fail to appear at the time and place specified in this order, you may be subject to arrest and punishment for contempt of court, and the court may make an order requiring you to pay the reasonable attorney fees incurred by the plaintiff in this proceeding.

APPEARANCE OF A CORPORATION, PARTNERSHIP, ASSOCIATION, TRUST, LIMITED LIABILITY COMPANY, OR OTHER ORGANIZATION

If the order to appear for the examination on page 1 does not require the appearance of a specified individual:

- **The organization has a duty to designate one or more of the following to appear and be examined: officers, directors, managing agents, or other persons who are familiar with the organization's property and debts.**
- **Failure to designate such a person familiar with the organization's property and debts to appear for examination will result in the order to appear for the examination to be deemed to have been made to, and require the appearance of, the following:**
  - **If the organization is a corporation registered with the Secretary of State, a natural person named as the chief financial officer in the corporation's most recent filing with the Secretary of State. If no one is so named, a natural person named as the chief executive officer in the corporation's most recent filing with the Secretary of State. If no one is so named, a natural person named as the secretary in the corporation's most recent filing with the Secretary of State.**
  - **If the organization is a limited liability company registered with the Secretary of State, the first natural person named as a manager or member in the limited liability company's most recent filing with the Secretary of State.**
  - **If the organization is a limited partnership registered with the Secretary of State, the first natural person named as a general partner in the limited partnership's most recent filing with the Secretary of State.**
  - **If the organization is not registered with the Secretary of State or the organization's filings with the Secretary of State do not identify a natural person as described above, a natural person identified by the judgment creditor as being familiar with the property and debts of the organization, together with an affidavit or declaration signed by the judgment creditor that sets forth the factual basis for the identification of the individual. The affidavit or declaration shall be served on the organization together with the order.**
- **Service of an order to appear for an examination upon an organization by any method permitted under the Code of Civil Procedure or the Corporations Code, including service on the agent of the organization for service of process, shall be deemed effective service of the order to appear upon the individuals identified above.**



Request for Accommodations. Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office or go to **courts.ca.gov/forms** *Disability Accommodation Request* (form **MC-410**). (Civil Code, § 54.8.)

For your protection and privacy, please press the Clear This Form button after you have printed the form.

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